Superior Court of California
County of San Benito

Tentative Decisions for August 20, 2026

Courtroom #1: Judge J. Omar Rodriguez

CU-25-00186 Hazleton, Laurel vs. Sierra Golf Operations LLC

The Case Management Conference is continued to September 17, 2026 at 1:30 p.m. to be heard along with the Motion to Compel Arbitration and Stay Proceedings.

CU-25-00304 Unity Courier Service, Inc. vs. Budget Truck Rental, LLC

Defendant, Budget Truck Rental, LLC's ("Defendant") Motion to Vacate and Set Aside Entry of Default is GRANTED. Defendant shall file and serve a responsive pleading within 10 days of this order. A case management conference is scheduled to take place on October 22, 2026 at 1:30 p.m.

The court has authority to set aside default and default judgment when the entry of the same was caused by the mistake, inadvertence, surprise, or neglect of a party's attorney. (Cal. Code Civ. Proc. §473(b).) Similarly, a default and default judgment may be set aside when it was caused by the mistake, inadvertence, surprise, or excusable neglect of the defendant or some other third party. The distinction is that the set aside of the default for the mistake, inadvertence, surprise, or neglect of an attorney is, upon proper declaration of the attorney, mandatory, whereas set side in the other instance is discretionary for the court. Additionally, a default and default judgment may be set aside when the default or default judgement is void. (Cal. Code Civ. Proc. v§473(d).)

The court has inherent equitable power to set aside the default and default judgment where they were entered as a result of extrinsic fraud or mistake. There are strict timelines in the statute for seeking relief. A motion premised on Code of Civil Procedure section 473(b) must be filed within six months after the entry of the default judgment (when premised on attorney error, et al.), or within a reasonable time up to six months after the entry of default when based on the defendant's or other's mistake, inadvertence, surprise or excusable neglect. When the default judgment is void, there is no such deadline.

When addressing a request for discretionary relief, the motion must be supported by a declaration showing the mistake, inadvertence, surprise or excusable neglect (Cal. Code Civ. Proc. §473(b).) The motion must be accompanied by a copy of the answer or other responsive pleading that the Defendant proposes to file in the action if the motion is granted. (*Ibid.*) The motion must also comply with the Civil Law and Motion Rules (Cal. Rules of Court Rule 3.1103(a)(2)) and be accompanied by a supporting memorandum (Cal. Rules of Court Rule 3.1113.) The court may grant discretionary relief under Code of Civil Procedure section 473(b) when the defendant shows a material mistake of law or fact which caused the defendant to fail to file a timely response to the complaint. (*Liberman v. Aetna Ins. Co.* (1967) 249 Cal. App. 2nd 515, 523-524.) The controlling factors in determining if a mistake is excusable is when a reasonably prudent person under the same or similar circumstances might have made the same error. (*McClain v. Kissler* (2019) 39 Cal. App. 5th 399, 414-415.) This is not a "get-out-of-jail-free card for parties who later come to regret past inaction or sitting on their rights." (*Ibid*.) Relief should be granted only when a party has made an honest and reasonable mistake. (*Id*. at 418.) Similarly, surprise for the purposes of this motion, is a condition or situation in which a party is placed to his injury, without default or negligence by that party and against which ordinary prudence could not have guarded. (*County of Los Angeles v. Financial Cas. & Sur. Inc.* (2015) 236 Cal. App. 4th 37, 44.) In ruling on the motion for relief, the proponent must present competent evidence and the affidavit must contain facts within the witnesses personal knowledge, not hearsay, opinions, or conclusions. (*Roman v. Usary Tire & Serv. Ctr.* (1994) 29 Cal. App. 4th 1422, 1427.)

The standard for relief from default is liberally construed in favor of the public policy of hearing cases on their merits. Here, Sedgwick initially assigned the matter to Lewis Brisbois Bisgaard & Smith, LLP, to protect defendant's interest. The assignment was made before Defendant's responsive pleading deadline and for reasons unknown, Lewis Brisbois failed to timely file an answer. Defendant solely relied on its attorney (Lewis Brisbois) to timely file an answer in response to the service of the Summons and Complaint. Lewis Brisbois inadvertently made a mistake and failed to file a responsive pleading. Defendant filed this motion within a reasonable period of time. Defendant has, as is statutorily required, also provided other pleading appropriately responsive to the Complaint. Plaintiff's objections are overruled.

CU-25-00311 Enz, Susan W. vs. Enz, Russell,

CU-25-00312 Enz, Susan W. vs. Enz, Karen Elizabeth

Welfare and Institutions Code section 15657.03(a)(1) provides for elders to seek protective orders. (W&I §§15610.07, 15610.30.) A conservator may bring such a petition on behalf of an elder. (W&I§ 15657.03.) A prevailing party in such an action may be awarded court costs and attorney's fees, if any." (*Ibid*.) Fees and costs are mandatory when elder abuse is proven in civil actions, which underscores the public policy that victims of abuse should not have to pay to vindicate their rights. (W&I §§15657 sub (a), 15657.5 sub (a).) Here Petitioner was successful in obtaining restraining orders against Respondents. They knew or should have known that based on the evidence submitted in support of the TROs that a permanent order would almost certainly issue but instead forced the Petitioner to incur substantial fees to prepare for trial, which were preventable. (See Declaration of Ms. Modica.) After nearly four months of high conflict litigation, Respondents stipulated to the maximum restraining order after Petitioner called only himself as a witness.

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (*Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 623; *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132 ["ascertaining the fee amount is left to the trial court's sound discretion."].) Trial judges are entrusted with this discretionary determination because they are in the best position to assess the value of the professional services rendered in their courts. (*Ketchum, supra*, 24 Cal.4th at 1132; *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095–1096; *Melnyk, supra*, 64 Cal.App.3d at 623.)